



Legal Requirements

Vehicle-for-Hire Training

Introduction

Several codes govern drivers providing transportation services in Toronto. This section explores parts of the Highway Traffic Act of Ontario, the Ontario Human Rights Code, and Chapter 546 of the Toronto Municipal Code. A good understanding of these legal requirements can help you excel at your job.



Section 01

Highway Traffic Act of Ontario

01 Highway Traffic Act of Ontario

The Highway Traffic Act of Ontario regulates licensing, vehicle equipment, road traffic and other transportation-related subjects. Highlighted here are some of the legislation's requirements relevant to driving a vehicle for hire.



Drivers of vehicles for hire must be licensed to drive a motor vehicle. The vehicles they drive must be registered, insured and maintained to meet some basic safety standards. Driving an unsafe vehicle is illegal. Some officials, such as police officers or Ministry of Transportation inspectors, can examine vehicles for hire and their equipment at any time. If an official determines that a vehicle is unsafe, it could be taken off the road until the problem is fixed.

Safety equipment is a critical part of your vehicle, and seatbelts deserve particular attention. Damaged or non-functioning seatbelts cannot effectively protect vehicle occupants, so they should be fixed immediately.

Besides inspections, seatbelt compliance is also important for drivers of vehicles for hire. Most drivers must wear a seatbelt every time they drive, and they must wear the complete seatbelt assembly. One noteworthy exemption pertains to taxicab drivers. They must wear a seatbelt while travelling alone, but they can skip this requirement while transporting passengers.

01 Highway Traffic Act of Ontario



Seatbelts must be properly worn and securely fastened. The lap belt should be flat and snug across your hips. If there's a shoulder belt, it should be flat and snug across your collarbone and chest. Your safety is jeopardized when a strap is twisted, the lap belt is across your stomach, or the shoulder belt is behind your back.

All passengers also must wear a seatbelt, and it's your responsibility as the driver to ensure that they do. Every passenger requires a functional seatbelt, so the number of passengers cannot exceed the number of seatbelts. You can meet this requirement by refusing service to a group whose size exceeds the number of seatbelts available in your vehicle.

Sometimes you may encounter young passengers who are too small to properly wear a seatbelt. Generally, drivers are responsible for ensuring that children in their vehicles are properly buckled into a seatbelt, a child car seat or a booster seat. However, most taxicab drivers don't have this responsibility.

When you are responsible for a small passenger's seatbelt compliance, the appropriate measure mainly depends on the child's size.

01 Highway Traffic Act of Ontario



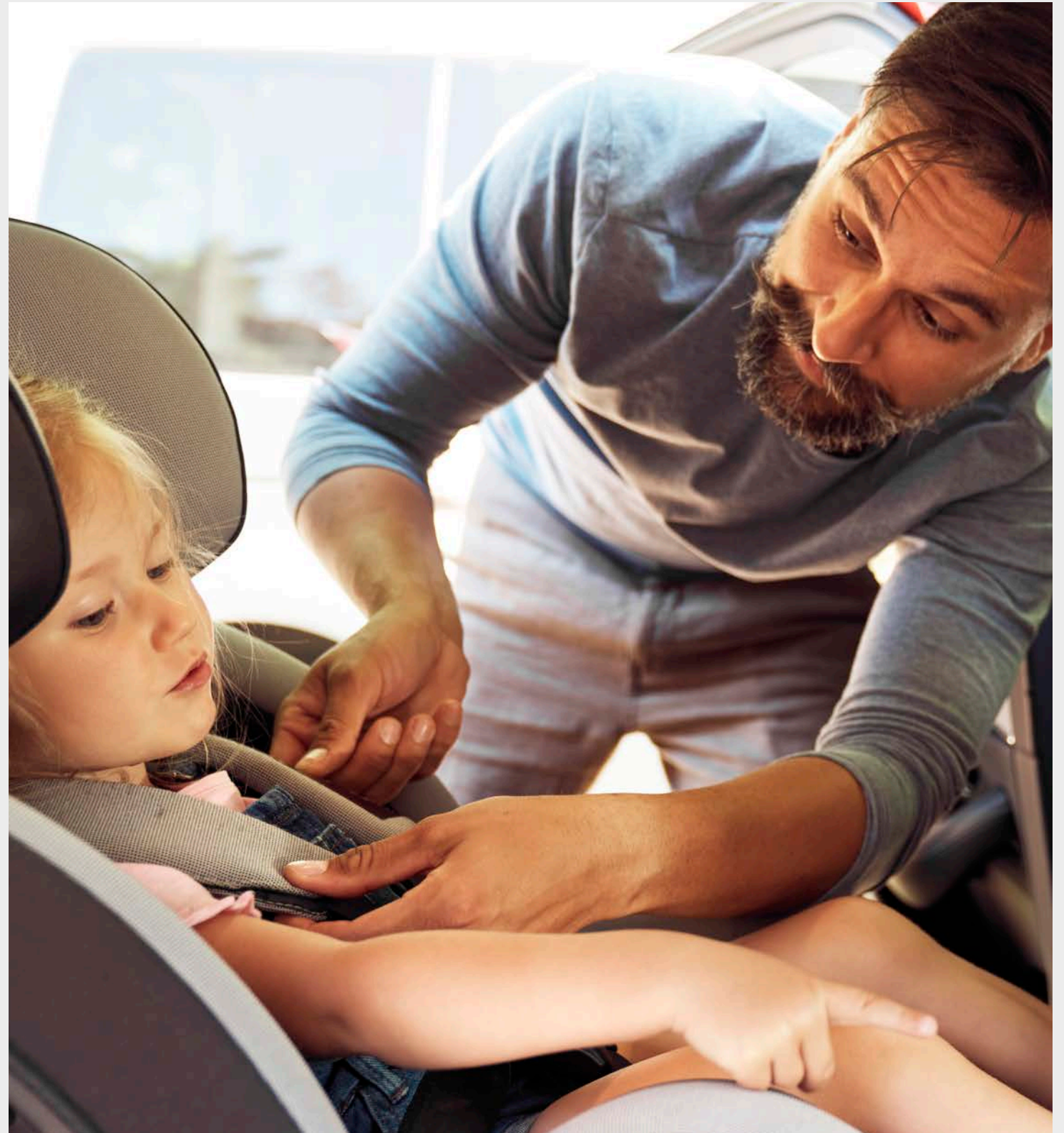
An infant weighing under 9 kilograms must be properly buckled into a rear-facing child car seat attached to your vehicle by a seatbelt or by UAS straps. This child car seat should go in one of the back seats of your vehicle. A rear-facing child car seat should never be installed in a seat within range of an airbag. The child could be seriously injured if that airbag inflates. Any installation of a child car seat in your vehicle should follow the manufacturer's instructions.

A toddler weighing approximately 9 to 18 kilograms must be properly buckled into a child car seat attached to your vehicle by a seatbelt or by UAS straps. Also, the tether strap for this child car seat must be attached to a tether anchor in your vehicle. This child car seat should go in one of the back seats. A rear-facing child car seat can be used for a toddler if it's designed to accommodate the child's height and weight. Any installation of a child car seat in your vehicle should follow the manufacturer's instructions.

01 Highway Traffic Act of Ontario

A child who weighs approximately 18 to 36 kilograms and who measures fewer than 145 centimetres tall can use a child car seat if it's designed to accommodate the child's height and weight. Otherwise, this child must use a booster seat along with an appropriate seatbelt, which typically should have lap and shoulder belts. Whenever possible, this booster seat should go in one of the back seats of your vehicle. Children should not be secured in seats within range of frontal airbags that haven't been turned off or cannot be turned off. Any installation of a booster seat in your vehicle should follow the manufacturer's instructions. The child's head should be supported by the top of the booster seat, or by a seat or a headrest of your vehicle. The lap belt should be flat and snug across the child's hips, the shoulder belt should be flat and snug across the child's collarbone and chest, and this seatbelt assembly should be securely fastened.

The Highway Traffic Act of Ontario contains many regulations. Some relevant to driving a vehicle for hire have been covered here. A good understanding of these regulations is important.



Section 02

Ontario Human Rights Code

02 Ontario Human Rights Code



The Ontario Human Rights Code gives people the right to be free from discrimination in accommodation, contracts, memberships in unions, trade and professional associations, as well as in employment and accessing goods, services and facilities on the following protected grounds:

- Age
- Ancestry, colour or race
- Citizenship
- Ethnic origin
- Place of origin
- Creed
- Disability
- Family status
- Marital status (including single status)
- Gender identity or gender expression
- Receipt of public assistance (in housing only)
- Record of offences (in employment only)
- Sex (including pregnancy and breastfeeding)
- Sexual orientation

Therefore, service providers and their employers have a responsibility to maintain inclusive environments, free from discrimination and harassment, that respect the human rights of all people accessing those services or employed by a company.

Section 03

**Chapter 546 of
Toronto Municipal
Code**

03 Chapter 546 of Toronto Municipal Code

Chapter 546 is the vehicle-for-hire bylaw. Article 1 covers general provisions. Article 2 covers mechanical inspections of taxicabs, limousines and vehicles for private transportation companies, such as Uber or Lyft. Article 3 covers taxicab rates and fares. Article 4 covers taxicab brokers, article 5 covers taxicab owners, and article 6 covers taxicab operators. Article 7 covers limousine owners, and article 8 covers limousine service companies. Article 9 covers drivers of taxicabs and limousines. Article 10 covers private transportation companies and their drivers. Article 11 is the last article, covering offences and guidelines. All of these articles are important, but articles 1, 9, 10 and 11 are especially relevant to drivers like you.

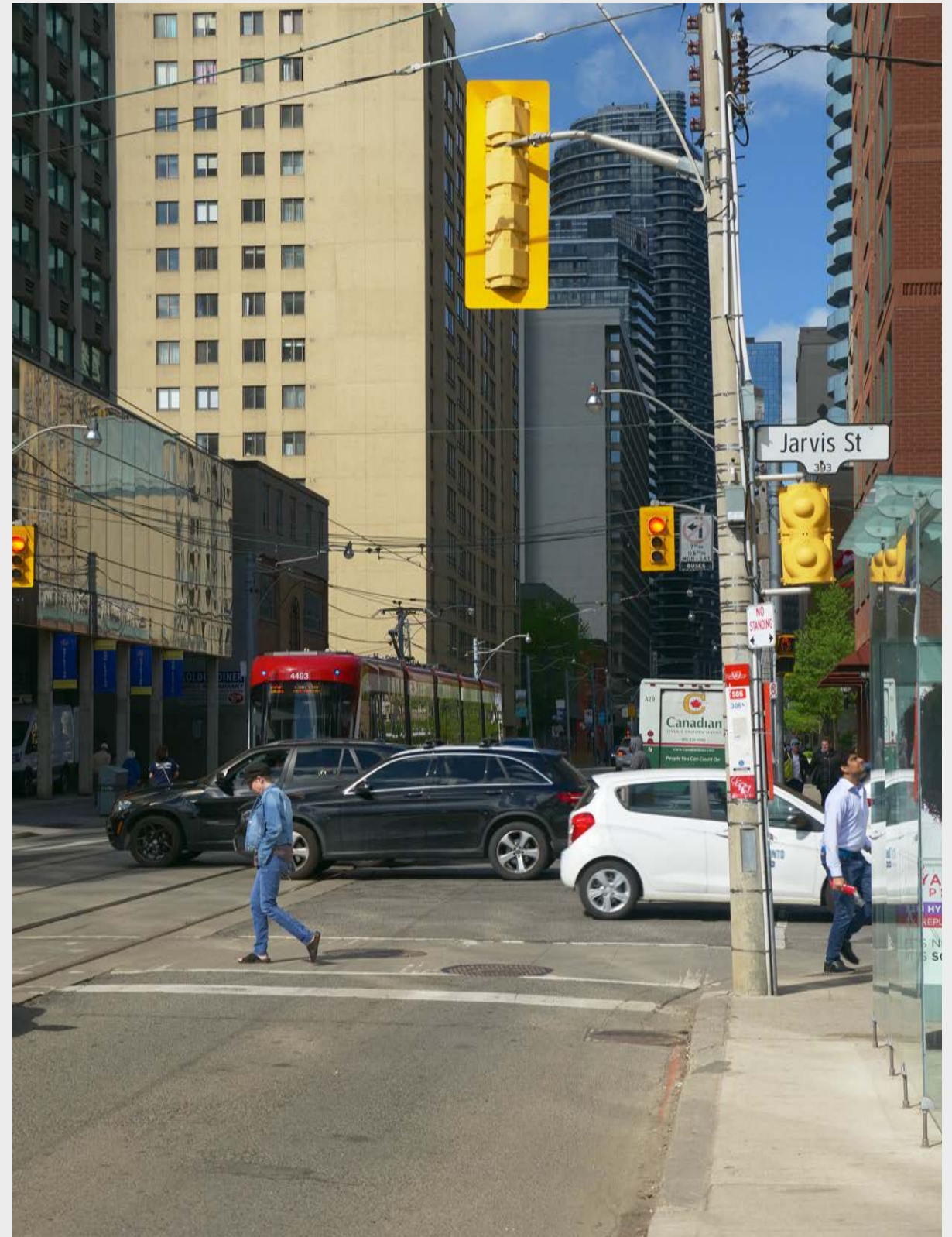
Article 1 lays out, among other things, expectations that apply to drivers of taxicabs, limousines and vehicles for private transportation companies.



03 Chapter 546 of Toronto Municipal Code

Drivers licensed under Chapter 546 cannot do certain things. These prohibitions include:

- Discriminating against someone on the basis of race, ancestry, place of origin, colour, ethnic origin, citizenship, creed, sex, sexual orientation, gender identity, gender expression, age, marital status, family status or disability.
- Refusing to serve a disabled person accompanied by a service animal.
- Permitting anyone to use a hookah or to smoke in the vehicle.
- Allowing someone to assist the driver in soliciting a person to use a taxicab, limousine or vehicle for a private transportation company.
- Entering into an exclusive concession agreement.
- Knowingly driving someone around for an unlawful purpose.
- Communicating on a mobile device while passengers are in the taxicab or limousine, except in an emergency.
- Using a mobile phone or another electronic device unconstrained by a secure mounting device in the vehicle.
- Consuming liquor while in charge of a vehicle.
- Misleading a passenger about the location of a place or the distance to it.



03 Chapter 546 of Toronto Municipal Code



Article 9 lays out expectations for drivers of taxicabs and limousines.

Taxicab and limousine drivers cannot provide transportation services in Toronto unless they hold a valid vehicle-for-hire driver's licence issued by the Municipal Licensing and Standards Division (ML&S). When you apply for a new or renewed licence, there are several requirements, such as:

- Presenting a valid, unrestricted Class G, or higher, Ontario driver's licence.
- Providing a driving record abstract that shows at least three years of driving history unless you were previously licensed under the bylaw.
- Proving that you have completed a driver training course.
- Meeting the screening criteria.

You must carry your vehicle-for-hire driver's licence with you at all times while driving a taxicab or a limousine so that you can show it to ML&S or a police officer requesting it.

03 Chapter 546 of Toronto Municipal Code



It's important that your Ontario driver's licence remain in good standing. If it's suspended or revoked for a period of time, your vehicle-for-hire driver's licence would also be suspended for the same duration. ML&S should be informed if the status of your Ontario driver's licence changes during the tenure of your vehicle-for-hire driver's licence.

Only licensed vehicle-for-hire drivers are allowed to drive taxicabs or limousines licensed as vehicles for hire. When one of these vehicles is in your care, you must ensure that it's driven only by you, a fellow employee or the vehicle owner. At the end of your shift, if applicable, you must return this vehicle to your employer.

Drivers have certain responsibilities before their taxicabs or limousines enter the roadway. You should drive only vehicles free from mechanical defects, possessing a clean exterior and interior in good repair, and equipped with the following:

- An extra tire and wheel ready for use.
- A ML&S-supplied plate securely affixed to the bumper.
- All of the required signage for passengers obtaining service.
- Fully functioning camera and emergency lights systems.

03 Chapter 546 of Toronto Municipal Code



Before and after each shift, you must inspect your vehicle for mechanical defects. If you find some, you must report these defects to the appropriate person.

During each shift, you must ensure that luggage and other items placed in your vehicle won't obstruct your view while driving.

Taxicab drivers must ensure that important information is properly placed in their vehicles. If you're one of these drivers, your vehicle should display several items where passengers in the back seat can see them, including:

- Your photograph and name.
- The name of the taxicab owner and the taxicab licence number.
- The taxicab bill of rights.
- The correct tariff card.
- A sign indicating clearly that the fare shown on the trip meter includes harmonized sales tax.

03 Chapter 546 of Toronto Municipal Code

Some taxicab passengers may request a trip to Lester B. Pearson International Airport. You should provide these passengers with a copy of the airport flat-fee map available from ML&S and offer them the corresponding fare.



Some taxicabs transport children to or from school. If this task is yours, you should start by affixing signs with the words "School Vehicle" at the front and rear of your vehicle. These signs should be clearly visible to other road users while you are transporting children. Afterwards, when you are ready to engage in other business, you should remove these signs.

Limousine drivers must ensure that important information is properly placed in their vehicles. If you're one of these drivers, your photograph and name should be placed where passengers in the back seat can see them. Also, you should be prepared to show the applicable schedule of rates or charges if a passenger requests that information.

03 Chapter 546 of Toronto Municipal Code

Taxicab and limousine drivers are professionals, so it's important to look and act that way. You should be clean, properly dressed, civil and well-behaved during your shift. Your vehicle should not obstruct people from using a sidewalk, or make any loud noise or disturbance. While waiting for a pre-arranged pick-up, you should remain sufficiently close to your vehicle so that you can constantly observe it. Limousines cannot be staged within 200 metres of a hotel, theatre or entertainment facility unless you have a pre-arranged pick-up at that location within 20 minutes. Taxicab and limousine drivers who fail to do these things could be fined up to \$700.

There are usually several ways to reach a destination. Whether you're transporting people or things, you should take the shortest possible route unless a passenger requests an alternative.



Comfortable taxicab passengers are often satisfied taxicab customers. Your vehicle should have fully functional air-conditioning and heating systems, and you should activate the appropriate system when a passenger requests it. Also upon request, you should silence sound-producing devices in your vehicle until the passenger's trip is complete.

03 Chapter 546 of Toronto Municipal Code

Taxicab drivers should not accept additional passengers once a trip begins unless a passenger in the vehicle requests it or another agreement is already in place.

Taxicab and limousine drivers must take care of the property entrusted to them. After completing each trip, you should carefully search your vehicle for money and other property left by mistake. Misplaced money or property should be returned to its owner or to the nearest police station whenever the owner cannot be found.



Some taxicab drivers are asked to carry parcels, letters or documents without passengers. You're allowed to accept this request as long as the trip meter operates throughout the trip, you don't pick up passengers, and you charge the fare registered on the trip meter or negotiated between the requestor and the taxicab brokerage.

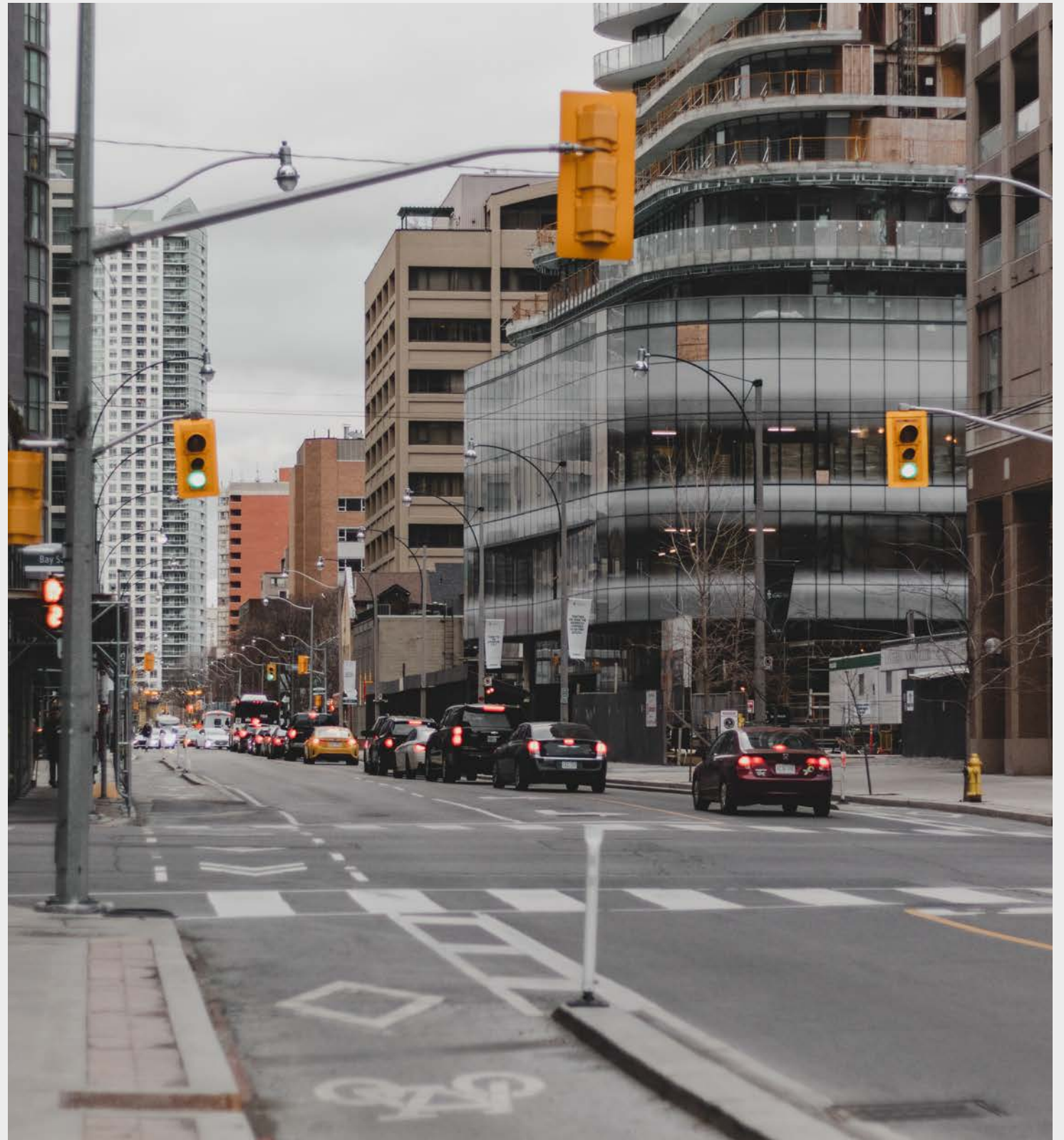
03 Chapter 546 of Toronto Municipal Code

Paying someone to solicit business for a taxicab or a limousine is prohibited.

Public taxicab stands have a certain etiquette, and taxicab drivers are expected to follow it. Generally, you should not pick up passengers within 30 metres of a public taxicab stand unless that stand is empty or a pick-up arrangement was made previously with these passengers. If you enter a public taxicab stand with your vehicle, you should:

- Go to the end of any line formed by taxicabs already on the stand.
- Remain in the driver's seat when your vehicle is first or second in line.
- Sit or stand sufficiently close to your vehicle so that you can constantly observe it.
- Avoid overcrowding or interfering with any taxicab already on the stand.
- Avoid cleaning or repairing your vehicle while on the stand.

Some public taxicab stands are authorized and assigned by bylaws. You can use these special stands only if you are authorized. Operating a limousine from any public taxicab stand is prohibited.



03 Chapter 546 of Toronto Municipal Code

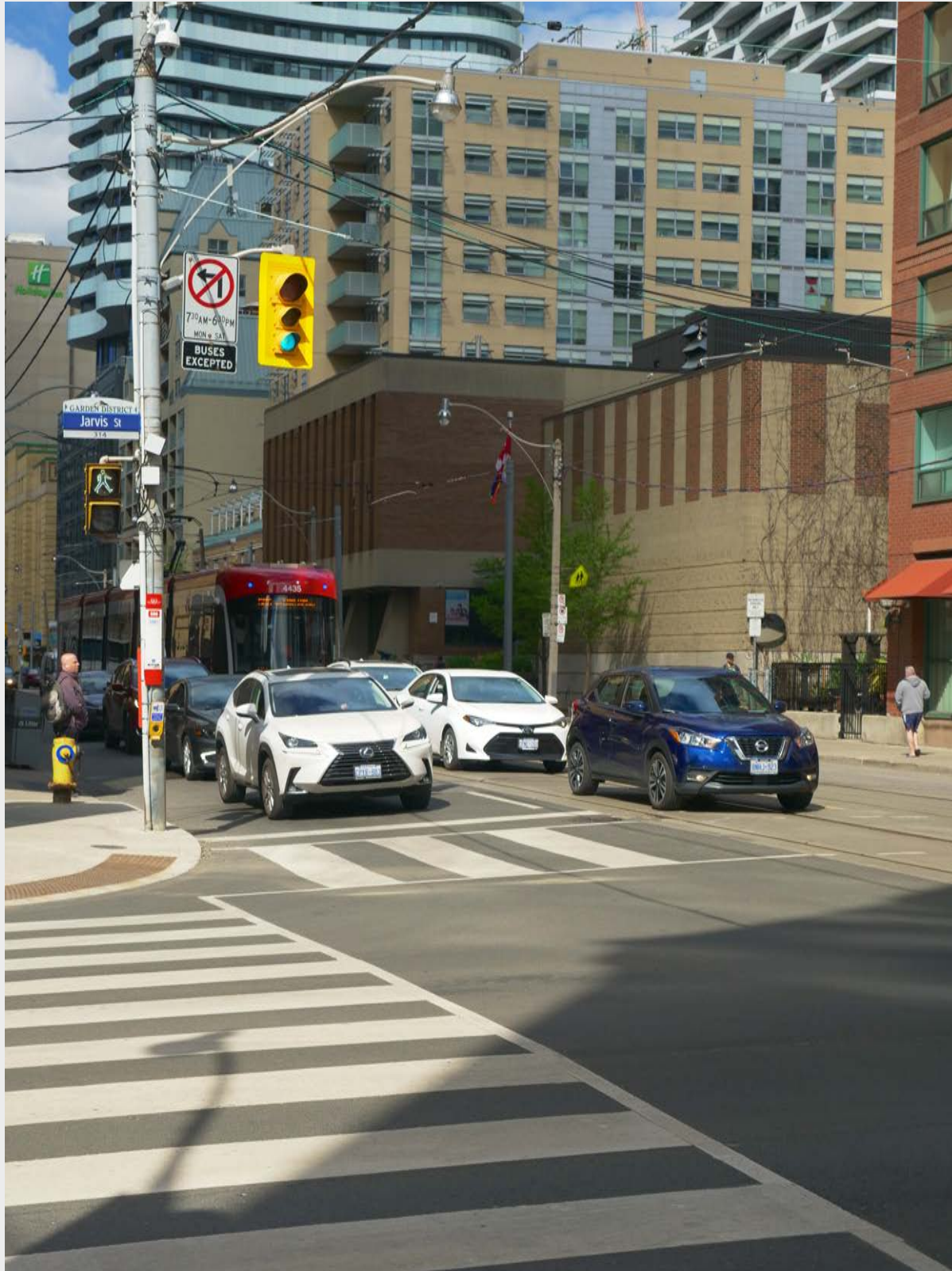
Taxicab drivers may refuse to serve potential passengers in some situations. You can refuse service to someone:

- Owing you or your employer for a previous fare or service.
- Failing or refusing to make an advance payment when you reasonably request it.
- Refusing to disclose his or her final destination when you request it shortly before or after this person enters your vehicle.
- Asking to be driven to a remote place in circumstances that are reasonably unsafe.
- Being unduly obnoxious or abusive.
- Smoking in your vehicle.



Police can help you with particularly dangerous or uncooperative people. If you refuse service to someone, you must immediately record your reasons for the refusal in your operator log. Take care when your reason is a previous engagement. Later, ML&S could request the person's name and address, and the time and place of the engagement. Taxicab drivers who can't provide these details upon request could be fined \$200. Also note that refusing someone for a poor reason, such as a short trip that would have produced a small fare, can be costly. Taxicab drivers who refuse service without an approved reason could be fined \$700.

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Limousine drivers may refuse to serve potential passengers in some situations. You can refuse service to someone:

- Owing you or your employer for a previous fare or service.
- Asking to be driven to a remote place in circumstances that are reasonably unsafe.
- Being unduly obnoxious or abusive.

If you refuse service to someone, you must immediately record your reasons for the refusal in your operator log. Take care when your reason is a previous engagement. Later, ML&S could request the person's name and address, and the time and place of the engagement. Limousine drivers who can't provide these details upon request could be fined \$200, and drivers who refuse service without an approved reason could be fined \$500.

In most situations, drivers should not activate a child safety lock while a passenger is in the vehicle. However, you can activate the lock when the passenger is incapable of personal care, such as a minor, and you have received written authorization from the parent, guardian or another person with legal authority to provide this written authorization.

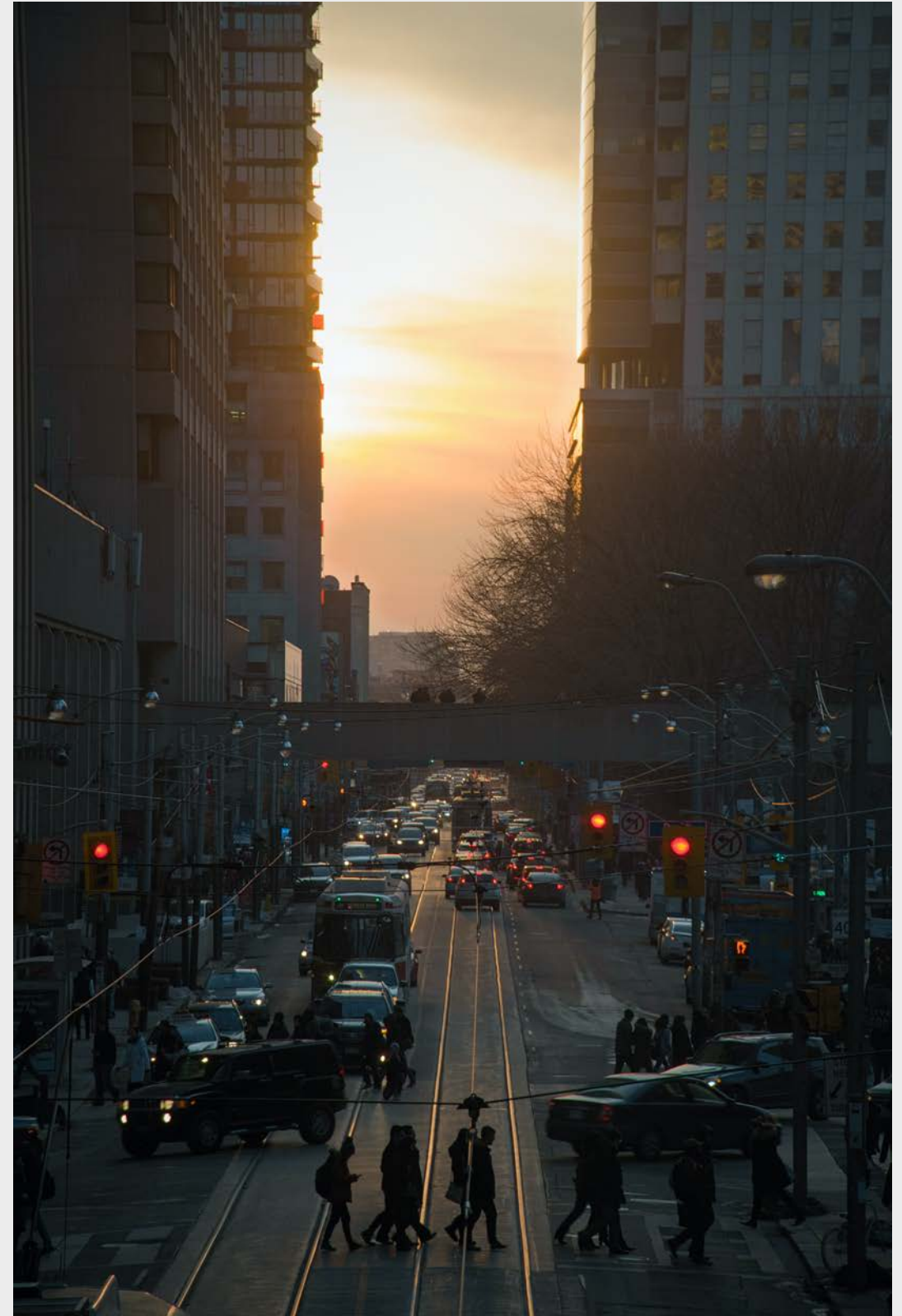
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Taxicab drivers cannot operate their vehicles for more than 12 hours during any 24-hour period. You should use an operator log to document each shift. When properly completed, this log records all important information, including:

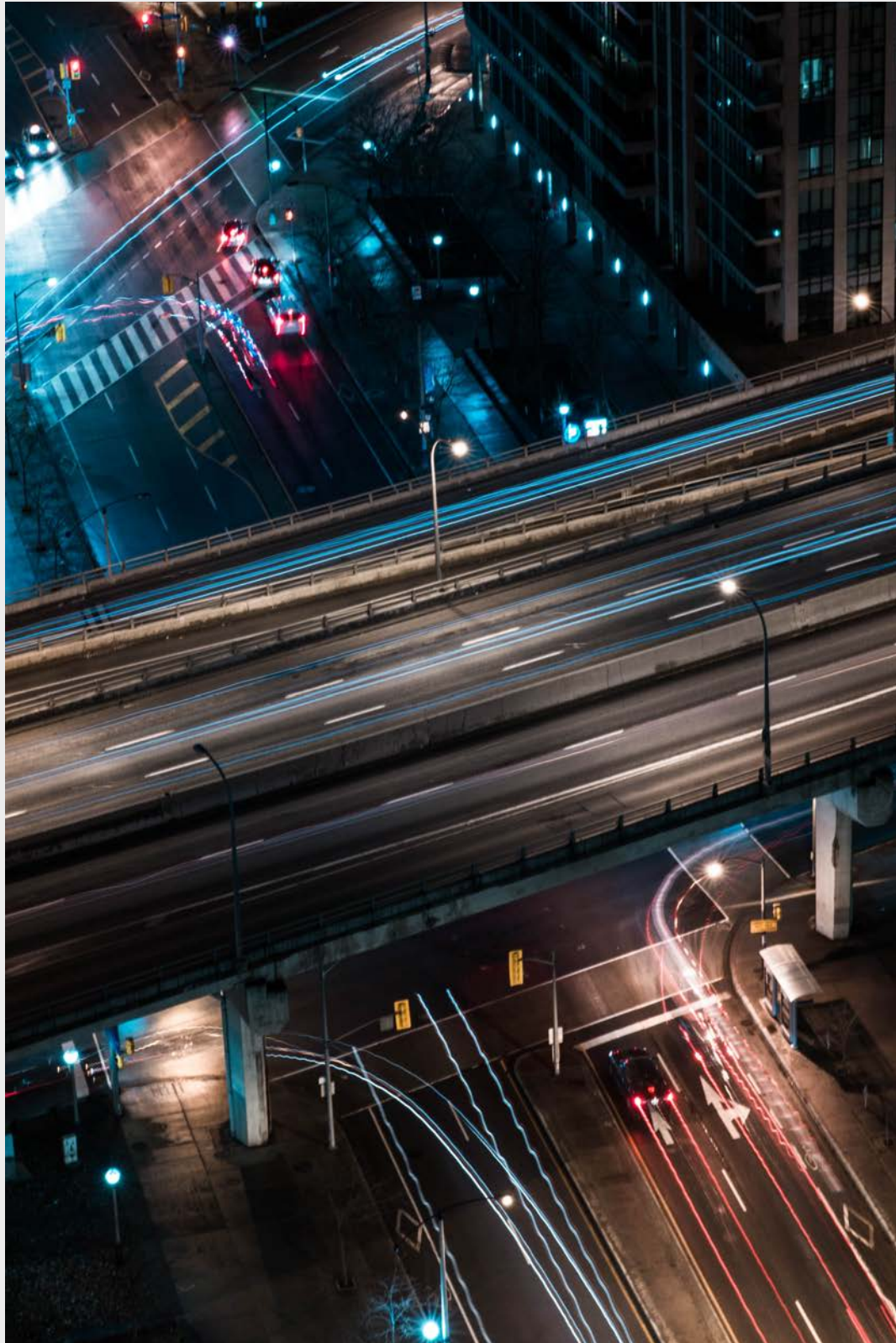
- Whether your vehicle was equipped for physically disabled passengers.
- The date and times you started work, began and ended your breaks, and finished work.
- Details of service requests you refused and other noteworthy incidents.

Special training is required for drivers of accessible vehicles, which are equipped for physically disabled passengers. If you're one of them, you must complete an initial training program before driving an accessible vehicle and then a refresher training program at least once every four consecutive years. You may need to complete these accessible vehicle training courses at other times too depending on your licence renewal history.

When you serve a passenger who requested an accessible vehicle, you should notify that passenger of your arrival at the pick-up point, provide appropriate assistance to the passenger when requested, and properly and safely handle mobility aides when necessary.



03 Chapter 546 of Toronto Municipal Code



Article 10 lays out expectations for any private transportation company (PTC), such as Uber or Lyft, and its drivers. Driver-specific provisions are the focus here.

Drivers cannot provide transportation services in Toronto through a PTC unless they hold a valid PTC driver's licence issued by the Municipal Licensing and Standards Division (ML&S). If a PTC suspends or terminates a driver's account, that individual's PTC driver's licence would also be suspended or terminated. Similarly, if a PTC driver's Ontario driver's licence is suspended or revoked for a period of time, that person's PTC driver's licence would be suspended for the same duration. ML&S should be informed if the status of a PTC driver's Ontario driver's licence changes.

To be a PTC driver, you must satisfy several requirements, such as:

- Being affiliated or registered with a PTC.
- Holding an unrestricted Class G, or higher, Ontario driver's licence.
- Having at least three years of driving history unless you were previously licensed under the bylaw.
- Meeting the screening criteria.

03 Chapter 546 of Toronto Municipal Code

PTC drivers apply for a PTC driver's licence through their chosen PTC. During this process, your PTC may check your driving and criminal records, your vehicle shall pass an annual mechanical inspection, and you must complete a driver training course. Renewing your PTC driver's licence follows a similar protocol.

PTC drivers must operate vehicles suitable for the transportation services they provide. Your vehicle should:

- Have four doors.
- Have a maximum seating capacity of seven passengers plus the driver.
- Be seven model years old or newer.
- Display PTC identification in an approved location when the vehicle is available to provide or is providing transportation services.
- Display a "watch for bikes" notice in an approved location unless your PTC provides a similar push notification through its platform.
- Be equipped with winter tires or all-weather tires from December 1 to April 30.
- Lack a roof light, colour scheme and other features that would make the vehicle look like a taxicab or that would identify it as being available for hire.

Some PTC vehicles may have a camera capable of recording audio or video of passengers. If your vehicle is among them, another notice is required. It should state that passengers are or may be recorded, and it should be displayed in an approved location unless your PTC provides this notice through its platform.



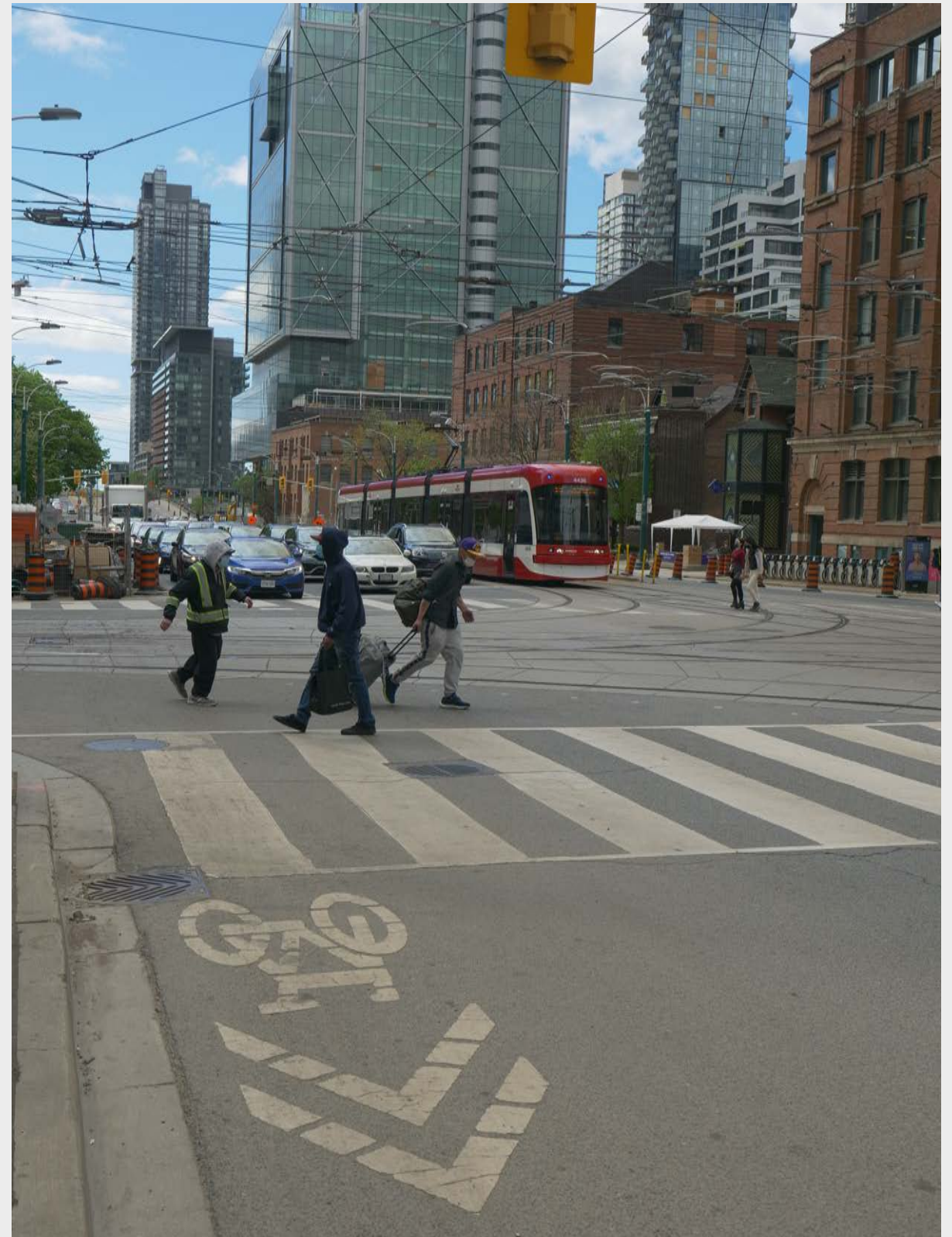
03 Chapter 546 of Toronto Municipal Code

Each PTC vehicle must be covered by an adequate automobile insurance policy. This policy should cover at least \$2,000,000 (exclusive of interest and costs) for loss or damage resulting from bodily injury or death, loss or damage to property resulting from an accident, and third-party liability. The policy also must cover each service trip from the time that a transportation request is accepted until the time that the trip ends. How this insurance requirement is met can vary by PTC, so you should confirm the details with your chosen PTC.

If a PTC driver fails to comply with these insurance requirements, ML&S may suspend the licence of that driver, without a hearing, until adequate automobile insurance is reinstated, renewed or replaced.

As a PTC driver, you should carry and be prepared to show ML&S:

- Your Ontario driver's licence.
- Your PTC driver's licence.
- Proof of applicable insurance.
- A copy of the most recent mechanical safety inspection certificate issued for your vehicle.
- Evidence of a trip in progress or the last completed trip.



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PTC drivers are expected to be civil and well behaved while they provide transportation services. You can respond only to service requests you receive through your PTC. You should not solicit rides in any manner, or pick up passengers at a cabstand or hailing you from a street. PTC drivers who fail to do these things could be fined up to \$1000.

Special training is required for drivers of accessible vehicles, which are equipped for physically disabled passengers. If you're one of them, you must complete an initial training program before driving an accessible vehicle and then a refresher training program at least once every four consecutive years.

Article 11 describes, among other things, the potential consequences people may face if they violate rules set out within articles 1 through 11.

Violating a bylaw provision is an offence. If convicted, an offender could be fined up to \$50,000. The maximum penalty may be imposed on an offender who failed to retain records and disclose them to ML&S for investigation or audit purposes. In special cases, an additional fine could be imposed to eliminate or reduce the possible economic advantage that a person may otherwise gain by violating bylaw provisions.

Chapter 546, the vehicles-for-hire bylaw, regulates taxicabs, limousines and private transportation companies operating in Toronto. Articles 1, 9, 10 and 11 are especially relevant to drivers like you. A good understanding of these articles is important.

Conclusion

This section has explored parts of the Highway Traffic Act of Ontario, the Ontario Human Rights Code, and Chapter 546 of the Toronto Municipal Code. With a good understanding of these legal requirements, you can provide excellent transportation services in Toronto.



Congratulations on completing Part One of Alertdriving's Vehicle-for-Hire Training Program.

You are now eligible to book an assessment timeslot.

Click [here](#) to book.